

STATE OF MICHIGAN
IN THE 60th DISTRICT COURT, MUSKEGON COUNTY

Case No.: 2025-25061626LT-LT
Honorable Judge: Maria Ladas Hoopes

SHADY OAKS PARK MHP LLC,
Plaintiff,

v.

ANDREW PIGORS,
Defendant.

DEFENDANT'S MOTION TO DISMISS COMPLAINT FOR EVICTION

NOW COMES Defendant, Andrew Pigors, in the above-captioned matter, and respectfully moves this Honorable Court to dismiss Plaintiff's Complaint for Eviction with prejudice, pursuant to MCL 554.601a, MCL 600.5716, MCR 2.116(C)(6), and MCR 2.116(C)(8). In support thereof, Defendant states the following:

I. INTRODUCTION

Plaintiff, Shady Oaks Park MHP LLC, has improperly filed this eviction action against Defendant as a retaliatory measure in response to Defendant's prior legal action against Plaintiff (Case No. 2025-25186592GC-GC). Plaintiff's eviction claim is procedurally and substantively defective and must be dismissed with prejudice.

II. LEGAL GROUNDS FOR DISMISSAL

1. Retaliatory Eviction – Violation of MCL 554.601a

- Plaintiff filed this eviction case after Defendant initiated legal action against them in Case No. 2025-25186592GC-GC, which addresses billing discrepancies, unlawful rent increases, and property violations.
- MCL 554.601a prohibits landlords from retaliating against tenants who have exercised their legal rights, including filing complaints or legal actions.
- The sudden rent increase and eviction filing after Defendant pursued legal remedies demonstrate clear retaliatory intent.

Legal Conclusion: This eviction lawsuit constitutes retaliation and must be dismissed under Michigan law.

3. Failure to State a Claim – MCR 2.116(C)(8)

- Plaintiff's eviction claim is based on miscalculated rent charges and unlawful fee increases, which Defendant has already challenged in pending civil litigation (2025-25186592GC-GC).
- Plaintiff failed to provide legally valid grounds for eviction, making their Complaint legally insufficient under MCR 2.116(C)(8).

Legal Conclusion: The eviction claim fails to state a legally valid claim and must be dismissed.

4. Pending Civil Litigation – MCR 2.116(C)(6)

- MCR 2.116(C)(6) prohibits multiple lawsuits involving the same parties and issues from proceeding simultaneously.
- Defendant's prior lawsuit (2025-25186592GC-GC) addresses the same financial disputes and retaliatory conduct alleged in Plaintiff's eviction case.
- The proper venue for resolving these issues is Defendant's prior lawsuit, not an eviction proceeding.

Legal Conclusion: This case must be dismissed because the same issues are already pending before this Court.

III. REQUEST FOR RELIEF

5. Sanctions for Bad-Faith Litigation – Violation of MCR 2.114(E) & (F)

- Plaintiff has engaged in bad-faith litigation by filing this eviction lawsuit as a retaliatory measure.
- MCR 2.114(E) & (F) authorize courts to impose sanctions for filings that are not well-grounded in law or fact and are intended to harass or cause unnecessary litigation.
- Given Plaintiff's misuse of eviction proceedings as a form of retaliation, the Court should impose appropriate sanctions, including attorney's fees and penalties.

Legal Conclusion: The Court should sanction Plaintiff for filing a frivolous and retaliatory lawsuit.

WHEREFORE, Defendant Andrew Pigors respectfully requests that this Honorable Court:

1. Dismiss Plaintiff's Complaint for Eviction with prejudice;
2. Find that Plaintiff's filing constitutes a retaliatory eviction in violation of MCL 554.601a;
3. Award Defendant legal costs and fees incurred in responding to this retaliatory and procedurally defective lawsuit; and
4. Grant any further relief this Court deems just and equitable.

Respectfully submitted,

Andrew Pigors
1977 Whitehall Rd Lot 17
Muskegon, MI 49445
231-903-5690 andrewjpigors@gmail.com

X _____

Dated: February 18, 2025

CERTIFICATE OF SERVICE

I hereby certify that on February 18, 2025, I served a true and correct copy of the foregoing Motion to Dismiss Complaint for Eviction via First-Class Mail and/or Personal Service upon:

AARON DANIEL COX (P069346)
The Law Offices of Aaron D. Cox, PLLC
23820 Eureka Rd
Taylor, MI 48180

X _____

Andrew Pigors
Defendant, Pro Se

Dated: February 18, 2025
